

National Highways Infrastructure Authority
National Highways Infrastructure Authority
NHIA Project Office, Plot 14, Sector 9, Government Complex, Vantara City

Employer's Acknowledgement — Notice of Dissatisfaction CTR-NRB4-0098

Nandira River Bridge Project — Package NRB-4

Document Reference:	NHIA-NRB4-COMM-004
Date:	01-Apr-2022
Contract No.:	NHIA/NRB4/CW/2020-01
From:	National Highways Infrastructure Authority
To:	Sagara Constructions Pvt. Ltd.
CC:	Meridian Engineering Consultants

Subject: Acknowledgement — Notice of Dissatisfaction CTR-NRB4-0098

We acknowledge receipt of your Notice of Dissatisfaction CTR-NRB4-0098 dated 25-Mar-2022, issued in respect of the Engineer's Commercial Assessment ENG-NRB4-0038 dated 04-Mar-2022.

We confirm the Notice was received within 28 days of ENG-NRB4-0038 and is accordingly noted as validly and timely issued under Sub-Clause 20.4. We note your confirmation that no factual or arithmetic matter is in dispute, and that the matter is confined to the contractual interpretation addressed in ENG-NRB4-0038 and Contract Interpretation Memorandum CIM-NRB4-002.

Our position, consistent with the Engineer's assessment, remains that Retention was correctly applied to the full cumulative value certified under IPC-NRB4-011, including the value of Variation VO-NRB4-004, and that no repayment or interest is due. We are, as you have proposed, willing to explore an amicable resolution of this matter under Sub-Clause 20.5 before either Party takes further formal steps.

Regards,
National Highways Infrastructure Authority